

25LBCV01397 25LBCV01397

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Defendant moves for summary judgment
on Plaintiff's complaint. Plaintiff
failed to timely file opposition papers.

Recently, in Mandell-Brown v. Novo

Nordisk Inc. (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion.

The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

The Court has reviewed the moving papers and finds they are not deficient on their face. In light of the lack of opposition and an opposing separate statement, the Court grants the motion.

Recently, in 24LBCV02791, the Court admonished Plaintiff's attorney as follows:

The Court notes that there have been numerous motions for summary judgment and/or adjudication filed by Honda in various cases without opposition. The Court asks Plaintiff's attorney to dismiss any case or cause of action the plaintiff does not intend to pursue.

Requiring the Court to rule on unopposed motions is not an efficient use of judicial resources.

Despite this admonishment, Plaintiff has neither dismissed the action nor opposed the motion.

Again, the motion is granted.

Defendant is ordered to give notice.